

Court No. - 33

Case :- WRIT - C No. - 19814 of 2019

Petitioner :- Gulab Keshari

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Vinod Kumar

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Manoj Misra,J.

Hon'ble Saurabh Shyam Shamsbery,J.

Put-up on Monday i.e., 10th June, 2019 before an appropriate Bench as fresh to enable Shri Narendra Kumar, learned counsel for the respondent to produce the final assessment order.

Order Date :- 4.6.2019

L.F./2

Court No. - 1

Case :- WRIT - C No. - 19814 of 2019

Petitioner :- Gulab Keshari

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Vinod Kumar

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Ramesh Sinha,J.

Hon'ble Vivek Varma,J.

Heard Sri Vinod Kumar, learned counsel for the petitioner, learned Standing Counsel appearing for the respondent no.1 and Sri Narendra Kumar Tiwari, learned counsel for the respondent nos.2 and 3.

By means of this writ petition, the petitioner has come up before this Court with the prayer to quash the impugned assessment order dated 17.05.2019 amounting to Rs.19,93,736/- plus Rs.22 as other charges.

Sri Narendra Kumar Tiwari, learned counsel appearing for the respondent nos.2 and 3 has produced a copy of final assessment order dated 13.05.2019 passed by Executive Engineer-respondent no.3 against the petitioner. He states that copy of the said order has been sent to the petitioner by registered post on 15.05.2019. He further states that receipt of the same has also been enclosed alongwith final assessment order.

Learned counsel for the petitioner states that he has not received copy of final assessment order and the order which has been passed by the authority concerned shows non application of mind as it is stated that objection of the petitioner dated 28.03.2019 was not considered. He has placed reliance of this Court in Writ-C No.3872 of 2018 (Meenu Gupta vs. State of U.P.) decided on 31.1.2018. He states that the issue involved in this writ petition is squarely covered by the decision of this Court in the case of ***Ashok Kumar and others vs. State of U.P. and others, 2008 (6) ADJ 660 (DB).***

Learned counsel for the respondent nos.2 and 3 has supplied the copy of final assessment order to the learned counsel for the petitioner in the Court today. He states that against the final assessment order, the petitioner has an statutory alternative remedy of filing an appeal under Section 127 of Electricity Supply Code, 2005.

In view of the above, we are not inclined to interfere in the matter. The writ petition is, accordingly, dismissed on the ground of alternative remedy.

It is needless to say that the petitioner may approach the appellate authority, who may decide the same in accordance with law.

(Vivek Varma, J.) (Ramesh Sinha,J.)

Order Date :- 10.6.2019/Ajeet